IN THE COUNTY COURT AT LINCOLN

Claim number: 019JE538

BETWEEN:

MSEM UK LTD (Claimant)

and

FISHBONE CONSTRUCTION LTD (Defendant and Claimant on the counterclaim)

WITNESS STATEMENT OF MINDAUGAS GAUDIESIUS

Managing Director of the Defendant

1. I am Mindaugas Gaudiesius, Managing Director of Fishbone Construction Ltd, the Defendant and Claimant on the counterclaim ("Fishbone"). I make this statement from my own knowledge. Where I was told something by someone else, I say who told me.

Background

2. Fishbone is a labour supply company. We have worked with Macdonald Joinery & Construction Ltd ("Macdonald Joinery") for about 13 years. I deal mostly with its owner, David Macdonald, and mostly by telephone.

3. On the BBC Cardiff toilet refurbishment project at BBC Central Square (our reference FC2520), Macdonald Joinery was the main contractor and Fishbone was its subcontractor. Andrew Macdonald of Macdonald Joinery asked me by telephone that Fishbone take over the site management of the project. I do not remember the date of the call, but it was before his email of 24 November 2025. In that email he wrote that works would start on Monday 1 December 2025 and that its "Site Managers" for the pre-start meeting on 26 November would be Mr Davidans and me (exhibit MG11). I agreed to be named as a site manager. I attended the pre-start meeting on 26 November 2025.

4. I had known Mr Mikheil Davidans for a long time. He had worked for Fishbone on other sites before, and invoiced Fishbone through his company, MSEM UK Ltd. I offered him the site manager role on this project personally. The agreement was verbal, at £300 a day. There was no written agreement, and no fixed end date for his own engagement was agreed.

5. When I received his first invoice for this project, he had included fuel and accommodation. I spoke to him and agreed to pay them. I knew that he left the site around noon every Friday to travel home. In the same conversation I agreed to pay a full day for Fridays on one condition: that all the works were completed on schedule. That condition applied only to the Friday full days. It was not put in writing.

6. The draft programme dated 19 November 2025 produced for Macdonald Joinery, which Mr Davidans had, shows a snagging meeting on Monday 9 February 2026 and handover on Friday 13 February 2026 (exhibit MG2). On 4 February 2026 Dave Newell of J4 Projects, the project manager on the programme, asked Macdonald Joinery and the client by email whether "Thursday next week" suited for a "final site meeting for the WCs". On 6 February David Macdonald forwarded that email to me with the words "Please see date for snag and handover of the toilets", and I replied the same day: "Yes, Thursday perfect" (exhibit MG12). Thursday was 12 February 2026. There was no telephone call from J4 about this: the date was arranged by email only. The meeting on 12 February replaced the snagging meeting planned for 9 February. Works started on Monday 1 December 2025, and Mr Davidans was on site that morning carrying out inductions (exhibit MG11).

7. Fishbone supplied the labour. A team of two joiners, I. Bulakevych and R. Drulit, were provided to Fishbone through Torin Construction Ltd, and Raitis Bikovs worked as a Fishbone subcontractor. He worked on the Central Square project first: the site register, where he signs as "Raitis", shows him there on 2, 3, 4 and 5 December 2025. He started on the Roath Lock project on 8 December 2025, and the Torin joiners arrived at Central Square the same day (the register shows I. Bulakevych and R. Drulit from 8 December). His own emails put him back at Central Square on Wednesday 11 February and Monday 16 February 2026. As far as I am aware, those are the only days he worked at Central Square after he moved to Roath Lock. Fishbone moved him because Roath Lock needed one joiner and Central Square needed one more joiner, and Torin could provide a team of two joiners. So Mr Bikovs went to Roath Lock and the Torin joiners started at Central Square. Fishbone chose and paid for all of them. Mr Davidans, as site manager, directed them on site (exhibit MG4).

8. On his first day on site, I agreed with him that every day he would send me photographs of the progress and photographs of the site sign-in register, so that I could check who was on site. He did this through a Telegram group chat for the project, which I created on 1 December 2025. This is how Fishbone runs its projects: I set up a Telegram group for each one. The register photographs he sent run from 2 December 2025 to 6 February 2026 (exhibit MG1). Each photograph shows the sheet as it stood, so together they cover almost every working day: Mr Davidans appears on the register on 37 of the 39 working days from 2 December to 6 February, except 16 December and 19 January, which are not on any sheet he photographed. The group's members were Mr Davidans, Andrejus Prutkovas and me, and from 2 December Mr Bikovs. Anastasia, my business assistant, who prepared site progress reports for me, was also in the group until 7 January 2026. The chat shows that Mr Davidans posted photographs and videos on about 21 days between 2 December and 6 February, and that he never wrote any message in the group about defects, gaps, panels or labour. The group had a "Delivery" topic, which I created on 1 December 2025. This is how Fishbone keeps proof of deliveries: the site manager posts a photograph of each

delivery, so that we can show when and what arrived if anyone asks. This is Fishbone's common practice: the same topics are used on other projects, for example FC2512 Parfums de Marly and FC2602 BBC Roath Lock Toilet upgrade, where the site managers post their deliveries (exhibit MG17). Mr Davidans knew the topics. I told him in person about such records when he first came to work with us, on the BBC W1 project. He was part of the management team that helped us control the site environment, and he valued records of deliveries, site progress pictures and the like, because they helped him do his job without having to chase people for answers. He knew how Fishbone operates. He was the site manager on FC2516 WoS Tissot Stratford in October and November 2025, in a group with the same four topics including Delivery, and he used the Sign-in and Progress pictures topics there every day. Deliveries did arrive at Tissot Stratford, but none were recorded in the Delivery topic by anyone. I do not know why. Recording them was his duty as site manager. On this job he posted nothing in the Delivery topic at any time (exhibit MG15), although Macdonald Joinery made deliveries to the site during the job. His last post was the sign-in sheet for 6 February, at 15:25. He posted nothing between 7 and 12 February (exhibit MG15). Nobody wrote in the group after 12 February 2026. I removed Mr Davidans from the group on 24 October 2026, to keep the evidence, and exported the chat; I exported it again in full on 2 November 2026 (exhibit MG15).

9. In December 2025 I was the site manager at the Roath Lock project and Mr Davidans was the site manager at Central Square. In the first working week of January 2026, Macdonald Joinery told me by telephone that they were unhappy with the costs and that one site manager was enough to cover five operatives across the two sites. I therefore left Mr Davidans as site manager on both sites, and I told him so in person. I do not remember the day. On 7 January 2026 Liam Price of EMCOR, the client's project manager, wrote to Macdonald Joinery, copying me, that he had been told Mr Davidans was managing both sites and that he needed a site manager at both projects at all times. On 12 January 2026 Andrew Macdonald confirmed that Oleksii Starovoitov was on site at Roath Lock as an English-speaking working foreman (exhibit MG13). Mr Starovoitov took over the foreman role at Roath Lock from that date. On 21 January 2026 Liam Price of EMCOR complained to Macdonald Joinery that the Roath Lock facilities management ("FM") team was not being briefed on progress. Andrew Macdonald asked me whether Mr Starovoitov was on site and whether he and Mr Davidans could brief the FM team each day. I replied to David Macdonald at 15:12: "We already spoke with Liam around 11.00 am today. Mikheil and Alex every morning will have little meetings with FM." (exhibit MG19). Mr Starovoitov did the morning briefings with the FM team. Mr Davidans spent most of his time at Central Square, and went to check progress at Roath Lock only when I asked him.

10. On or about 30 January 2026 there was a pre-handover meeting at the site. I did not attend it. Attending site meetings was part of Mr Davidans's duties as site manager. The same day, after the meeting, Mr Davidans telephoned me. He said he needed to finish the works and

that he would be ready for handover. He did not say which works. He did not tell me about any defects or snagging items, and he did not ask for more labour or help.

February 2026

11. On 2 February 2026 I drove to Cardiff in Fishbone's van NJ17CYK with Andrejus Prutkovas. I arrived in Cardiff at about 15:00. We had a hotel not far from Roath Lock. I walked around the Roath Lock project. That day I went only to Roath Lock, not to Central Square. I did not see the operatives there, because their shifts had finished by that time, and I did not see Mr Davidans that day. On the morning of 3 February Andrejus Prutkovas and I met Dainius Drulia at Roath Lock, where he started that day. We spent three to four hours examining exactly what needed to be done there. I introduced him to the FM team and checked all the drawings. At 09:24 I called Mr Davidans to book parking at the BBC building. At 10:47 Mr Davidans's phone called mine. He told me that the parking was booked and that I could come over from Roath Lock. We then went to Central Square and visited Mr Davidans. I do not remember what time we arrived. We stayed about two to two and a half hours. We had a small talk and then walked around the building site. The works were progressing and no problems were raised during the walk-round. I asked him, as a routine question, whether he could finish. I do not remember exactly what he answered. Labour was not mentioned. Everything was fine at that time. It was a routine visit. At 13:55 I was at Central Square, which is why I called him again then. We left Cardiff when the visit to Central Square finished; I do not remember the time. We returned to Newcastle that night.

12. The photographs Mr Davidans posted in the Telegram group on 6 February 2026 showed the cubicles with the partitions up and the toilets and basins in. The dark panels behind the toilets are part of the toilet system and were in place. The white panels, which are Venesta laminated panels, and the five cubicle doors, which Macdonald Joinery made and delivered, had not yet been fitted. The photographs did not show the defects found later. I looked at them at the time and I thought only a small job was left. The doors and the white Venesta panels are made off site and delivered to site by Macdonald Joinery, and the hinges and handles are already fitted, so what remained was putting the white panels in place, which includes fitting the aluminium split battens they hang on, and hanging five doors. In my experience that takes two operatives three days at most. I do not know when the panels and doors arrived, because I was not there. Mr Davidans was the site manager and the site contact for deliveries, so deliveries were his to accept. I asked Mr Davidans whether he could finish: first when Andrejus Prutkovas and I visited him at Central Square on 3 February, then on my telephone call on 5 February, and then on each call before 12 February. On every call I asked him whether everything was all right, whether he needed anything, and whether he was on time to finish. I do not remember exactly what he answered on each call. The panels were made to exact sizes. If there are gaps between them once they are installed, the walls must have been built too long. That is my

reasoning, from my routine visits to site; I did not see the walls being built. The bubbles on the doors (item 12 of the snagging list) are a manufacturing fault in the doors, which Macdonald Joinery made. They have nothing to do with this matter, and none of the costs in paragraph 27 relate to them.

13. On Thursday 5 February 2026 I telephoned Mr Davidans at 09:01 (exhibit MG6). From my experience I thought it was better to have spare hands in the week of the handover, so I asked him whether he needed any spare labour. He told me he was in control. I also asked him whether he was working the coming weekend, the last weekend before handover. He told me he was not working and that there was no reason to, because everything would be completed, and not to worry. He did not ask for more help and did not tell me that there was a problem.

14. At 15:25 on Friday 6 February 2026 Mr Davidans posted the day's sign-in sheet in the Telegram group with no message (exhibit MG15). The sheet shows three Fishbone names, including his, and three EMCOR names. The other two Fishbone names are I. Bulakevych and R. Drulit. At 15:35 his phone called mine; the call lasted 2 minutes 37 seconds (MD14). On that call he asked me for joiners. He did not say how many and did not mention gaps. I told him I would find some, and I asked whether men from Roath Lock could help at the weekend. He said no, because he was not working at the weekend and the building was shut. Joiners were working at Roath Lock that weekend. Straight after that call, Andrejus Prutkovas and I spoke with Mr Drulia and asked him to lend one of his men to help Mr Davidans finish the project. Mr Drulia agreed. I do not remember when Mr Drulia told me, but it was over the telephone: he said that on 10 February he was at Central Square with Mr Starovoitov and Mr Bikovs, to help Mr Davidans.

15. The BBC Wales buildings at Central Square and at Roath Lock are both open at weekends. Most testing and decommissioning work in these buildings is done at weekends, when they are emptier than on weekdays. The draft programme itself shows testing and commissioning starting on Saturday 7 February 2026 (MG2).

16. On 9 February 2026 Andrejus Prutkovas and I were on site at BBC Central Square. Mr Davidans says the same (his paras 17 to 19 and 42 to 47). We travelled in my personal car, not the Fishbone van. I do not remember the times of the journey. I saw Mr Davidans, we walked around the site, and we met in the BBC café, which is about 50 steps from the toilet project. Andrejus Prutkovas was with us. I do not remember how long we stayed. I do not remember exactly what was said, including whether he asked for labour that day or what I said about it. Mr Pabis was still in Guernsey finishing his project. Mr Drulia and his team arrived at Central Square the next day, 10 February (paragraph 14). That night we stayed in a hotel in London, where Nev ran a project of ours in Covent Garden. At 23:55 and 00:02 Andrejus Prutkovas and I spoke because he had forgotten his room card. At 01:28 we spoke because he was looking for food and asked whether I wanted some. I was not on site on 10 February.

17. On 10 February 2026 Mr Davidans sent me a video and an image on WhatsApp of a damaged panel and asked whether I could get a replacement. The label on the panel was a colour reference. I replied that we did not have one and that I would try to find one. That was the only problem he raised with me in writing. He wrote nothing about problems in the Telegram group (exhibit MG15). At 13:03 that day I telephoned him about the panel. After that call he sent a photograph of the panel label at 13:35 (exhibit MG5).

18. On 3 February 2026 Dainius Drulia, an experienced site manager, started as site manager on a new Fishbone project at BBC Roath Lock (FC2602, BBC Roath Lock Toilets upgrade). Roath Lock is about a 20-minute drive from the Central Square project. Andrejus Prutkovas and I arranged for Mr Drulia to help Mr Davidans at Central Square (see paragraph 14), and he did so on 10, 11 and 12 February 2026; for 10 and 11 February I rely on what he told me. He then worked on putting the work right from 13 February (paragraph 27). Sebastian Pabis was working for Fishbone in Guernsey until 12 February. He crossed to Portsmouth on 12 February and arrived in Cardiff that evening. His first working day at Central Square was 13 February.

19. On 12 February 2026 the handover meeting took place. I was not there. I know about it from emails and WhatsApp messages from David Macdonald. At 15:11 that day Dave Newell of j4projects, copying the architects, emailed David Macdonald and Liam Price of EMCOR a list of 16 snagging items "following the snagging meeting today" and wrote: "We will need to delay handover until items 1-16 are complete." David Macdonald forwarded it to me at 15:32 with the words "This is just the start of it." (exhibit MG7). The list includes: cubicles set out from the back wall and the floor set out from the front wall; white shiny silicone to be replaced with matt; panels to be aligned; shadow gaps above the panels to be made good; bubbles on the cubicle doors; and damaged edges. As additional or to-follow items it lists fitting the sign, door stops, five handles and grey seats. The Telegram chat shows that at 16:07 that day Andrejus Prutkovas posted in the project group, of which Mr Davidans was a member, the snagging list as a PDF file, "Cardiff snagging list following site review 12th Feb 2026", with the words "I am sharing 'Cardiff snagging list following site review 12th Feb 2026' with you" (exhibit MG15). Fishbone received the list from David Macdonald, and Andrejus Prutkovas posted it in the group to pass it on to Mr Davidans. The list has 20 items and 13 photographs. Andrejus Prutkovas's phone record shows that at 16:29 he called Mr Davidans for 1 minute 52 seconds (exhibit MG16). I do not know what was said on that call.

20. On 13 February 2026 I took part in a Teams meeting called by Dave Newell, with Liam Price of EMCOR and David Macdonald, about the snagging and how and when it would be finished. The invitation was sent to me at 11:47 that morning for 14:00 to 14:30 (exhibit MG14). I joined the meeting at 14:00. At the meeting they explained what needed to be put right. Nothing else was agreed. A meeting with David Macdonald and Dave Newell about progress on putting things right was agreed for 18 February. I was in London that day with

Andrejus Prutkovas, and we did not travel to Cardiff that night. I was not on site on 13 February.

21. The sign was not available to fit. On 19 February 2026 David Macdonald wrote that it was "not sent to site as yet", and Andrew Macdonald wrote that it was being finished and should be on site early the following week. On 23 February 2026 David Macdonald asked that the main toilets be completed for the Wednesday (exhibit MG8).

22. At 14:07 on 13 February 2026 Mr Drulia wrote in a WhatsApp group of Andrejus Prutkovas, Mr Drulia and me that Mr Davidans had already left ("Misha jau sjibalsa", which I understand to mean that he had gone quickly) (exhibit MG18). Mr Drulia later told me, and I do not remember exactly when or how, that Mr Davidans had left the site and, in his words, had finished his ten-week project. Those were his words. He also told me that Mr Davidans had been on site on 13 February and had left that day.

23. On 17 February 2026 Andrejus Prutkovas and I arrived in Cardiff. On 18 February 2026 we went to the site at Central Square and met David Macdonald and Dave Newell, as had been agreed on 13 February (paragraph 20).

After he left

24. Mr Davidans did not tell me he was leaving, and I did not tell him to leave or to go home. My O2 bill (exhibit MG6) shows no call from me to him on 13 February, his own phone bill shows no call from his phone to mine or to Andrejus Prutkovas's that day, and Andrejus Prutkovas's bill shows no call with him on 13 February. On 18 February 2026 I asked him by WhatsApp where the toilet signage was. He did not reply to the message. At 14:24 his phone called mine and we spoke for about a minute: he said he had not received the signage (the call is on his phone bill, MD14). On 22 February he messaged to ask when he would be paid. On 23 February I replied that Fishbone's payment was held until handover. On 27 February he asked again, and I replied that we would hand over on the Monday and then call to discuss how to close the matter. He replied "Ok, thanks." (exhibit MG5, with a translation of the Russian messages).

The invoices

25. MSEM invoiced Fishbone weekly. Invoice 552 was paid on 13 February 2026. Invoice 553 dated 8 February 2026 for £1,898 and invoice 554 dated 15 February 2026 for £1,891 are unpaid (exhibit MG3). I accept that Mr Davidans worked on site on the days in invoice 553, 2 to 6 February 2026, and on the days in invoice 554, 9 to 13 February 2026. I have no site register for 9 to 13 February. Mr Drulia told me that he left site on Friday 13 February (paragraph 22). On other Fridays he left around noon, as I say in paragraph 5.

26. Fishbone has withheld both invoices because of the defects in the work and the cost of putting them right. I disputed the invoices in writing on 18 March 2026 (exhibit MG9).

Egita Davidane of MSEM asked on 18 and 27 March 2026 for photographs, reports and invoices. Fishbone did not send any.

The counterclaim

27. From 13 February to 1 March 2026 Fishbone paid for labour and materials to put right the work at Central Square. The costs are (exhibit MG10): Snag Doctor £530.00; Anton Kogut £1,400.00 (£600.00 for 13, 14 and 15 February, and £800.00 for 16, 20, 21 and 22 February); Dainius Drulia £2,300.00 (Central Square days only, from 13 February; his day on 12 February is not claimed); Sebastian Pabis £3,730.69; Raitis Bikovs £112.50 (overtime at Central Square on Monday 16 February 2026); and Oleksii Starovoitov £308.75 (Monday 16 February, one day at £190 and five extra hours at £23.75). The total is £8,381.94 before VAT and CIS. All the bills have been paid from Fishbone's bank account: those of Snag Doctor, Mr Kogut, Mr Bikovs and Mr Starovoitov, and Mr Drulia's bills for the weeks ending 22 February and 1 March (paid on 6 and 13 March 2026). Mr Drulia's bill for the week ending 15 February was settled from an advance of £3,000 that he asked for and that Fishbone paid to him on 22 November 2025; £1,250 of the same advance was deducted from his bill for the week ending 22 February (exhibit MG10). Mr Pabis is not a subcontractor. He is employed by Fishbone on a fixed weekly wage, paid through payroll every week, including 13 February to 20 March 2026 (exhibit MG10). He worked 14 days and 3 hours at Central Square from 13 February to 1 March 2026. The cost to Fishbone of those days is his wages for them, £3,220.00, plus employer's National Insurance of £414.10 and employer's pension contribution of £96.59, which I have confirmed from his payslips: £3,730.69 in all. Mr Kogut's invoice dated 24 February 2026 says it is for January. That is a mistake: the dates are in February.

28. Fishbone's counterclaim is for £7,997.25, as stated in its Defence and Counterclaim. If the Claimant's claim of £3,031.20 (invoices 553 and 554 after CIS) were allowed, the net amount of the counterclaim would be £4,966.05.

Statement of truth

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Mindaugas Gaudiesius

Date: _____

Exhibits

- MG1 Site register photographs, 2 December 2025 to 6 February 2026

- MG2 Draft programme, BBC Cardiff L4 WC Remodel, 19 November 2025
- MG3 MSEM invoices 545 to 554
- MG4 Torin Construction bills, BBC Cardiff lines marked
- MG5 WhatsApp chat with Mr Davidans, 3 February to 12 July 2026, with translation
- MG6 O2 call records, calls to Mr Davidans only
- MG7 Email of 12 February 2026 15:11 and snagging list
- MG8 Emails of 19 and 23 February 2026
- MG9 My email of 18 March 2026 and the reply
- MG10 Rectification bills and proof of payment; Mr Pabis's timesheets, payslips and wage payments (bank details redacted)
- MG11 Emails of 24 November 2025 (pre-start meeting, start date, site managers) and 1 December 2025 (inductions, site contacts, site set-up delivery)
- MG12 Emails of 4 and 6 February 2026 (final site meeting on Thursday 12 February)
- MG13 Emails of 7 and 12 January 2026 (site management, Roath Lock foreman)
- MG14 Teams invitations of 13 February 2026
- MG15 Telegram group chat "FC2520 BBC Cardiff - toilet refurb project", exported 24 October and 2 November 2026, with the snagging list PDF posted on 12 February 2026 (photographs and videos on request)
- MG16 Andrejus Prutkovas's O2 itemised bills dated 21 January and 21 February 2026, calls to Mr Davidans only (a company phone; all other numbers redacted)
- MG17 Telegram group chats FC2516 WoS Tissot Stratford, FC2512 Parfums de Marly and FC2602 BBC Roath Lock Toilet upgrade, exported 2 November 2026 (other people's names and photographs redacted)
- MG18 Screenshot of the WhatsApp group of Andrejus Prutkovas, Mr Drulia and me, 13 February 2026 (messages at 07:31, 10:19, 10:21 and 14:07; full export of the group to be obtained)
- MG19 Emails of 21 January 2026, "Roath Lock Kitchens" (Liam Price 08:22, David Macdonald 08:41, Andrew Macdonald 09:26, my reply 15:12)